143 THE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH

CRM-M-46114-2025 (O&M)
Date of decision: 16.07.2026

ANJALI BHATIA

…Petitioner

Versus

STATE OF HARYANA AND OTHERS …Respondents

Coram: Hon'ble Mrs. Justice Shalini Singh Nagpal

Present: Mr. Suvir Kumar, Advocate
for the petitioner.

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SHALINI SINGH NAGPAL J. (Oral)

1. Petitioner seeks quashing of order dated 27.02.2024 of learned Judicial Magistrate Ist Class, Gurugram, in complaint case bearing No. COMI-340 dated 12.07.2026 titled ***Anjali Bhatia Vs. Pushpa Bhatia,*** vide which her application under Section 156(3) Cr.P.C. for registration of FIR was dismissed and order dated 22.01.2025 of learned Additional Sessions Judge, Gurugram, dismissing her revision petition.

2. Learned counsel for the petitioner submits that marriage of petitioner was solemnized with Rajiv Bhatia in the year 1995. On account of matrimonial disputes, the husband and wife, in the year 2006, decided to live separately. In 2018, petitioner's husband passed away due to illness without executing a Will. Respondents No. 2 to 9 forged and fabricated Will of Rajiv Bhatia on the basis of which crores of rupees were transferred from his account, from 17.12.2018 to 01.07.2019, into their personal accounts. An application under Section 156(3) Cr.P.C. was moved by the petitioner before learned Judicial Magistrate Ist Class, Gurugram, which was illegally dismissed vide order dated 27.02.2024 and the case was treated as a private

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complaint. Revision petition filed against the order dated 27.02.2024 was also erroneously declined.

3. Heard.

4. Section 156(3) Cr.P.C. reads thus:

> *"(i) Any officer-in-charge of a police station may, without the order of a Magistrate, investigate any cognisable case which a Court having jurisdiction over the local area within the limits of such station would have power to inquire into or try under the provisions of Chapter XIII.*
>
> *(ii) No proceeding of a police officer in any such case shall at any stage be called in question on the ground that the case was one which such officer was not empowered under this section to investigate.*
>
> (iii) Any Magistrate empowered under section 190 may order such an investigation as above mentioned."

5. Resort to Section 156(3) Cr.P.C. is made when the police refuses to register a first information report. The complainant, thereafter, can invoke the jurisdiction of the Court for police investigation under Section 156(3) Cr.P.C. Whether or not, the order for registration of FIR and police investigation is to be made under Section 156(3) Cr.P.C. or the case is to be treated as a private complaint by calling upon the complainant to lead preliminary evidence, is entirely within the discretion of the concerned Magistrate. Whenever any application is filed by the complainant before the court of learned JMIC under Section 156(3) Cr.P.C, the duty of the concerned Magistrate is to apply his mind to adjudge whether the case is fit one to order police investigation.

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6. In ***Om Prakash Ambadkar Vs. State of Maharashtra (SC) 2025 SCC Online SC 238,*** Hon'ble Supreme Court has ruled that a Magistrate should pass orders under Section 156(3) Cr.P.C. only he is satisfied that the information reveals commission of a cognizable offence and also about the necessity of police investigation for digging out of evidence wherein neither is in possession of the complainant nor can be procured without the assistance of the police. It was further observed that it is not necessary that in every case, where a complaint has been filed under Section 200 Cr.P.C., the Magistrate should direct the police to investigate the crime. It was further observed that the Magistrate ought to direct investigation by the police only where the assistance of the Investigating Agency is necessary and the Court feels that the cause of justice is likely to suffer in the absence of investigation by the police.

7. Thus, law does not enjoin the Magistrate to mechanically direct investigation by the police, without examining whether investigation by the State machinery is actually necessitated in the facts and circumstances of each individual case. Usually, such orders are passed if the allegations made in the complaint require complex and complicated investigation which cannot be undertaken without active assistance and expertise of the State machinery. A judicious approach is required while considering an application seeking registration of FIR and investigation by the police under Section 156(3) Cr.P.C.

8. In the case in hand, it is petitioner's own case that she and her deceased husband had a matrimonial discord and she was living separately from her husband for the last 12 years before his death. Learned Magistrate has taken note of the factual position that a civil suit challenging the

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genuineness of Will is pending and in its wisdom, declined to register FIR against the mother, sister and other family members of the deceased. On record is Annexure P-2, the conclusion of inquiry conducted by the police on complaint of the petitioner dated 24.02.2023. The police found that no cognizable offence was made out.

9. The powers under Section 156(3) Cr.P.C. directing registration of FIR and police investigation are required to be used sparingly, only to avoid miscarriage of justice. In every complaint, where such a prayer is made for police investigation and registration of FIR, it is not incumbent for the Magistrate to direct registration of the FIR.

10. Thus, there is no patent illegality perceived in the order dated 27.02.2024 of learned Judicial Magistrate Ist Class, Gurugram.

11. In the revision petition filed by the petitioner challenging order dated 27.02.2024, learned Additional Sessions Judge, Gurugram refused to interfere, observing that the revision petition was not maintainable, the order under challenge being interlocutory, while also recording findings on merits.

12. In **CRM-M-28852 of 2021,** decided on 27.04.2026 titled ***Mandeep Singh Vs. State of Haryana and Another,*** this Court has observed that an order passed under Section 156(3) Cr.P.C. is not an interlocutory order and revision against the same is maintainable. Be that as it may, the finding of learned Revisional Court that a Magistrate is not bound to send an application under Section 156(3) Cr.P.C. for registration of case to the police, is based on proper appreciation of legal and factual position. Impugned order of learned Judicial Magistrate Ist Class, Gurugram, upheld in revision by learned Additional Sessions Judge, Gurugram, does not

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require interference by this Court in exercise of its inherent jurisdiction under Section 528 Bharatiya Nagarik Suraksha Sanhita, 2023.

13. The petition, being bereft of merit, is hereby dismissed.

14. Pending CRM(s), if any, also stand disposed of.

(SHALINI SINGH NAGPAL)
JUDGE

16.07.2026
Ajay Goswami

Whether speaking/reasoned *Yes/No*
Whether reportable *Yes/No*

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